

MFR – Limiting Competition under SAT

1. Contracting Activity: U.S. Army Contracting Command – Rock Island, Rock Island Arsenal, Rock Island IL 61299-8000.

2. Description of Action:

Nature: ☒ New Requirement ☐ Follow-on Requirement

Contract Vehicle: ☒ Purchase Order Number _____
☐ Blanket Purchase Agreement (BPA) Number _____
☐ Order/BPA# _____ against FSS Contract Number _____
☐ Order # _____ against Multiple Award IDIQ Contract Name or # _____
☐ Order # _____ against a single award IDC Contract # _____
☐ Modification # _____ to existing PO/TO/DO/Call Order # _____

Pricing: ☒ Fixed Price ☐ Time & Materials/Labor Hours ☐ Cost Reimbursable

Funds: ☐ Operations & Maintenance, Army Other Funds: _____ FY: _____

Name of Proposed Contractor(s): _____

Brand Name Buy ☒ Yes ☐ No

3. Description of Services or Supplies: In layman's terms, briefly describe the services or supplies to be provided, including make & model number where appropriate. Include quantities of supplies or period of performance for services. Provide information for any options included. Include the total estimated value of the proposed action (Do not use abbreviations):

Product: AG BALLOTINI IMPACT BEADS, Product Code 601736, Specification: NMD 240A, Drawing 923AS757, Product: Spherical 110P8, Product Code: 602722, Specification: NMD 240A, Drawing 923AS756, Product: SPHERIGLASS 3000A, Product Code 601870, Specification: NMD 240A, Drawing 923AS758

4. Authority: Mark the applicable exception, choose only one

☒ FAR 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

Or

- ☐ FAR 8.405-6(a)(1)(i)(B) and 8.405-6(b)(1) Brand Name
☐ FAR 8.405-6(a)(1)(i)(B) Only One Source is Capable
☐ FAR 8.405-6(a)(1)(i)(C) Logical Follow-on

☐ FAR 8.405-6(a)(1)(i)(A) Urgency

Or

- ☐ FAR 16.505(b)(2)(i)(B) and 16.505(a)(4) Brand Name
☐ FAR 16.505(b)(2)(i)(B) Only One Awardee is Capable
☐ FAR 16.505(b)(2)(i)(C) Logical Follow-on

☐ FAR 16.505(b)(2)(i)(A) Urgency

5. Reasons for Authority Cited:

- Explain why the intended contractor is the only reasonable source who can provide the required supplies or services. Discuss the unique capabilities, expertise, etc. that support the lack of competition.
- For a brand name restriction - brand name specifications shall not be used unless the particular brand name, product, or feature is essential to the Government's requirements. Explain why the brand specified is the only brand that will meet the Government's needs.
- Describe the detrimental effects/serious injury to the mission of the requiring activity or to the government, financial or otherwise, that will result if this justification is not approved and the product or service cannot be provided by the intended sole source contractor.

Urgent requirement urgent usage estimated to be exhausted by March 12, 2025, failure to receive this material prior to will result work stoppage
This procurement is subject to a Qualified Manufacturer List (QML) in accordance with FAR Subpart 9.2 -Qualifications Requirements. a Qualified Manufacturer List (QML) for:

Product: AG BALLOTINI IMPACT BEADS, Product Code 601736, Specification: NMD 240A, Drawing 923AS757.

Product: Spherical 110P8, Product Code: 602722, Specification: NMD 240A, Drawing 923AS756

Product: SPHERIGLASS 3000A, Product Code 601870, Specification: NMD 240A, Drawing 923AS758

Vendor: POTTERS INDUSTRIES INC

6. Publicizing Contract Actions: For FAR 13 actions, the public display and synopsis requirements of 5.101 and 5.203 ☐ do not apply due to the \$ threshold, ☐ apply and will be followed, or ☒ do not apply due to an exception at 5.202 (a)(2) _____. Fill in exception.

Requirement to post justification IAW 8.405-6(b)(3), 13.105(c), or 16.505(a)(4)(iii)(A)

- ☐ Action is NOT a brand name restriction and is under SAT, no posting required
☐ Action is a brand name restriction, under \$25K, no posting required
☐ Action is a brand name restriction, over \$30K. It will be redacted and posted with the solicitation.
☐ Action is a brand name restriction over \$25K but will not be posted due to exception Select One

